

data of foreign nationals not present in India.

The law will not have a retrospective application, and will come into force in a structured and phased manner. Without such an enabling law, exemptions provided in the bill will fall short of securing accountability from the state for activities such as dragnet surveillance.

Consent for collection and processing of personal data

The draft bill defines data in two different ways: personal data, which is data about or related to a natural person (an all-encompassing tag of sorts) and sensitive personal data, which includes health data, official identifier, sex life, sexual orientation, biometric data, genetic data, transgender status, intersex status, caste or tribe, religious or political beliefs.

The DPA will have the residuary power to notify further categories in accordance with the criteria set by law.

Data fiduciaries will be required



The government needs to include data privacy recommendations by TRAI (Credit: www.indiatoday.in)

to obtain consent for collection and processing of personal data, which should be informed, specific, clear and capable of being withdrawn.

For sensitive personal data, consent standards would be higher and more detailed. For instance, data fiduciaries will have to make sure that the individual is given the choice of separately consenting to the use of different categories of sensitive personal data relevant to processing, and that the individual understands that processing of this data may have significant consequences for him or her.

For consent to be valid, it should be free, informed, specific, clear and

capable of being withdrawn. For sensitive personal data, consent will need to be explicit and be the lawful basis for processing of personal data.

However, the law will apply a product liability regime to consent, thereby making data fiduciaries liable for harms caused to data principals. Data principals below 18 years of age are to be considered as children. Data fiduciaries will have a general obligation to ensure that processing is undertaken keeping the best interests of the children in mind.

Further, data fiduciaries capable of causing significant harm to children are to be identified as guardian data fiduciaries. All data fiduciaries (including guardian data fiduciaries) are to adopt appropriate age verification mechanism and obtain parental consent.

Further, guardian data fiduciaries, specifically, shall be barred from certain practices. The ones exclusively offering counselling services or other similar services will not be required to take parental consent.

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